कार्यालय, अधिशासी अभियन्ता,
अनुरक्षण शाखा (गंगा)
उत्तराखण्ड जल संस्थान,
जगजीतपुर, हरिद्वार – 249408
ई–मेल – eegangaujs@gmail.com

जल संचय – जीवन संचय

Office of The Executive Engineer
Maintenance Division (Ganga)
Uttarakhand Jal Sansthan
Jagjeetpur Haridwar - 249408
Email - eeganga-ujs-uk@nic.in

प्रेषित,

M/S Gharpure Engineering & Construction
Pvt Ltd, 35/1, D-II Block, MIDC,
Pune
EmailID-rg.patil@beil.co.in

पत्रांक 1451 / लेखा/ई–निविदा /2022–23 दिनांक– 30/11/2022

विषय– हरिद्वार जलोत्सारण योजना के अन्तर्गत 27 एम0एल0डी0 एस0टी0पी0 जगजीतपुर, हरिद्वार के संचालन एव रखरखाव 05 वर्ष (दिनांक–01.12.2022 से दिनांक–30.11.2027) कार्य के सम्बन्ध में।

उपरोक्त विषयक के अवगत कराना है, कि, अनुरक्षण शाखा(गंगा), उत्तराखण्ड जल संस्थान, जगजीतपुर,हरिद्वार द्वारा हरिद्वार जलोत्सारण योजना के अन्तर्गत 27 एम0एल0डी0 एस0टी0पी0 (एस0बी0आर0 पद्धति) जगजीतपुर हरिद्वार के संचालन एवं रख–रखाव कार्य हेतू आपके एवं अधोहस्ताक्षरी के मध्य हुए कार्य अनुबन्ध संख्या 07(सी0बी0)/ ई0ई0/2022–23 दिनांक 30.11.2022 के कम में किए गये अनुबन्ध की शर्तो एवं दरो के अनुसार निम्नानुसार कार्य दिनांक–01.12.2022 से प्रारम्भ करते हुए, देयक प्रत्येक माह के प्रथम सप्ताह में भुगतान हेतु अधोहस्ताक्षरी के कार्यालय में प्रस्तुत करे।

क्र0 सं0	कार्य का नाम	वर्ष	अनुबन्धित दर प्रतिमाह(रू0)	अनुबन्धित दर प्रतिवर्ष(रू0)
01	हरिद्वार जलोत्सारण योजना के अन्तर्गत 27 एम0एल0डी0 एस0टी0पी0 (एस0बी0आर0 पद्धति जगजीतपुर, हरिद्वार का संचालन एवं रख–रखाव मय अशोधित एवं शोधित सीवरेज की कैमिकल एवं बाइलोजिकल सभी प्रकार की टेस्टिंग, गार्डनिंग, इलेक्ट्रिकल एवं मैकेनिकल कार्यो की मरम्मत एवं रखरखाव तथा सिविल स्ट्रक्चर की मरम्मत रख–रखाव, रंगाई–पुताई, कूडे–कचरे का निस्तारण, प्रोपर्टी की सुरक्षा एवं तत्सम्बन्धित कार्य अवधि 05 वर्ष (सामग्री, लेबर, टी0एण्ड0पी0 सहित) जिसमें केवल विद्युत देयक एवं डीजल विभाग द्वारा देय होगा।			
	प्रथम वर्ष (01.12.2022 से 30.11.2023)	प्रथम वर्ष	7,68,031.95	92,16,383.40
	द्वितीय वर्ष (01.12.2023 से 30.11.2024)	द्वितीय वर्ष	8,06,433.35	96,77,200.20
	तृतीय वर्ष (01.12.2024 से 30.11.2025)	तृतीय वर्ष	8,46,755.22	1,01,61,062.64
	चतुर्थ वर्ष (01.12.2025 से 30.11.2026)	चतुर्थ वर्ष	8,89,092.99	1,06,69,115.88
	पंचम वर्ष (01.12.2026 से 30.11.2027)	पंचम वर्ष	9,33,547.64	1,12,02,571.68
	कुल योग(कुल 05 वर्षो के लिए)			5,09,26,338.80
	जी0एस0टी0 18 प्रतिशत			91,66,740.00
	कुल योग(जी0एस0टी0 सहित)			6,00,93,128.80

नियम एवं शर्ते–

1. अधिशासी अभियन्ता अनुरक्षण शाखा(गंगा), उत्तराखण्ड जल संस्थान हरिद्वार द्वारा द्वितीय पक्ष को भुगतान अनुबन्धित दरों पर कार्य संतोषजनक एव उचित गुणवत्तापूर्ण पाए जाने पर किया जाएगा।
2. सीवेज शोधन संयत्र में अधिष्ठापित संयंत्रो एवं उपकरणो के संचालन एवं विद्युत खपत का विवरण देयक के साथ उपलब्ध कराना होगा।
3. द्वितीय पक्ष द्वारा प्रत्येक 15 दिवस में सीवरेज शोधन संयंत्र के शोधित जल की गुणवत्ता के मानको की जांच एन0ए0बी0एल0 प्रयोगशाला से कराने के पश्चात् शोधित सीवेज की जांच रिर्पोट अनुबन्धानुसार संयन्त्र अनुरक्षण एवं संचालन हेतु देय प्रतिमाह धनराशि देयक के साथ प्रस्तुत करनी होगी।
4. द्वितीय पक्ष द्वारा सहायक अभियन्ता/कनिष्ठ अभियन्ता के निर्देशानुसार एवं निर्धारित मानको के अनुरूप कार्य किया जायेगा। सहायक अभियन्ता/कनिष्ठ अभियन्ता द्वारा कार्य संतोषजनक होने का प्रमाण पत्र उपलब्ध कराने के उपरान्त ही भुगतान किया जाना संभव होगा।
5. जी0एस0टी0 नियमानुसार देय होगी।

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6. तीय पक्ष द्वारा कराये गये कार्यो के देयको से नियमानुसार करो की कटौती कर अधिशासी अभियन्ता,अनुरक्षण शाखा(गंगा),उत्तराखण्ड जल संस्थान,हरिद्वार द्वारा द्वितीय पक्ष को भुगतान किया जाएगा।
7. अधिशासी अभियन्ता,अनुरक्षण शाखा(गंगा),उत्तराखण्ड जल संस्थान,हरिद्वार द्वारा कार्य समाप्ति के 06 माह उपरान्त तक कार्य संतोषजनक पाए जाने पर जमानत राशी अवमुक्त की जाएगी।
8. द्वितीय पक्ष द्वारा शोधित सीवेज जल की गुणवत्ता, निविदा प्रपत्र में दिये गये मानको के अनुसार बनायी रखनी होगी, अन्यथा की स्थिति में विभाग द्वारा निविदा प्रपत्र के Scope of work under sub-head, Liquidated Damages and penalties for O/M works के अनुसार कार्यवाही की जायेगी।
9. भविष्य में यदि संयन्त्र में कुछ/कोई मशीनरी भी क्षतिग्रस्त होती है, जिसके कारण शोधित सीवेज जल की गुणवत्ता प्रभावित होने की सम्भावना हो, तो अनुरक्षण एवं रखरखाव कर रही फर्म को तत्काल संयन्त्र की क्षतिग्रस्त मशीनरी की पूर्ण मरम्मत करा कर मशीनरी को चालू करना होगा, सामान्य परिस्थितियों में फर्म को 30 दिवस के भीतर संयन्त्र की क्षतिग्रस्त मशीनरी की पूर्ण मरम्मत करा कर मशीनरी को चालू करना होगा अन्यथा की स्थिति में मरम्मत विभाग द्वारा करा ली जायेगी एवं जिन पर होने वाले खर्च की धनराशि की कटौती अनुबन्धानुसार संयन्त्र अनुरक्षण एवं संचालन हेतू देय प्रतिमाह धनराशि देयक से की जायेगी।
10. कार्य की वैधता 60 माह(दिनांक–01.12.2022 से दिनांक–30.11.2027 तक)होगी, जिस से विभागीय समिति की रिपोर्ट के आधार पर बढ़ाया/समाप्त किया जा सकता है।
11. शेष शर्ते अनुबन्ध के अनुसार होगी।

(अजय कुमार)
अधिशासी अभियंता

पृष्ठांकन संख्या एवं दिनांक तदैव
प्रतिलिपि – निम्नलिखित को सूचनार्थ एवं आवश्यक कार्यवाही हेतू प्रेषित।

1. मुख्य महाप्रबन्धक महोदय, उत्तराखण्ड जल संस्थान, जल भवन नेहरू कॉलोनी, देहरादून।
2. वित्त निदेशक,उत्तराखण्ड जल संस्थान, जल भवन नेहरू कॉलोनी, देहरादून।
3. महाप्रबन्धक(मु0), उत्तराखण्ड जल संस्थान, जल भवन नेहरू कॉलोनी, देहरादून।
4. अधीक्षण अभियंता, उत्तराखण्ड जल संस्थान, पंतद्वीप, हरिद्वार।
5. सहायक अभियंता, अनुरक्षण शाखा(गंगा),उत्तराखण्ड जल संस्थान, ऋषिकेश।
6. कनिष्ठ अभियन्ता(मु0), अनुरक्षण शाखा(गंगा),उत्तराखण्ड जल संस्थान, हरिद्वार।
7. मण्डलीय लेखाकार, अनुरक्षण शाखा(गंगा),उत्तराखण्ड जल संस्थान, हरिद्वार।
8. अनुबंध पत्रावली।

30.11.22
अधिशासी अभियंता

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सत्यमेव जयते

INDIA NON JUDICIAL

Government of Uttarakhand

₹100

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Purchased by	:	GHARPURE ENGINEERING AND CO PVT LTD
Description of Document	:	Article 15 Bond
Property Description	:	NA
Consideration Price (Rs.)	:	0 (Zero)
First Party	:	GHARPURE ENGINEERING AND CO PVT LTD
Second Party	:	NA
Stamp Duty Paid By	:	GHARPURE ENGINEERING AND CO PVT LTD
Stamp Duty Amount(Rs.)	:	100 (One Hundred only)

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FORM OF AGREEMENT

(To be filled in at the time of Agreement by successful Bidder on Rs. 100.00 Non-Judicial Stamp Paper)

CB NO- 07 / EE /2022-23 **dated -01.12.2022**

This INDENTURE made the Day of **01.12.2022** between **M/S Gharpure Engineering & Construction Pvt Ltd, 35/1, D-II Block, MIDC, Pune** (hereinafter called the contractor) which expression shall where the context so admits or implies be deemed to include his heirs, executors and administrators of One Part AND the Chief General Manager of Uttarakhand Jal Sansthan (UJS) hereinafter called the CGM which expression shall where the context so admits or implies, be deemed to including his successors in office and assign of the part, WHERE the said UJS required the execution of certain w[illegible] **ERATION &**

Executive Engineer
Maintenance Division (Ganga)
Uttarakhand Jal Sansthan
Haridwar

Gharpure Engg. & Constr. (P) Ltd. Pune-19

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shall be entitled as invoke the security deposit and carryout the operations through a another contractor or departmentally. The Employer shall then proceed as per Tender conditions.

Liquidated Damages and penalties for O/M works- The basis for applying penalties is to restrict Contractor from deviating from disposing all raw/treated waste water efficiency from the service area - as per fixed schedule and as per stipulations in the tender.

The contractor is also expected to carry out the instructions of the Engineer or its representative from time to time, maintain the system in accordance with good Operating practices attend to customer complaints, retrain from offerings operations without due authorization where so required and follow other requirements under this Contract.

The Contractor shall be subject to the following liquidated damages and penalties for its failure to carry out its operations as indicated below.

S.No.	Basis of penalty	Penalty Benchmark	Penalty Value
1	Failure to maintain PH /BOD /COD /TSS /Fecal coli form within prescribed limits Detected as per reports of daily samples tested in lab by the Employer and outlet quality to be achieved as per Tender provisions	Up to 2 Occurrence/month	1,000/-per Occurrence
		2 to 5 Occurrence/month	5,000/-per Occurrence
		5 to 10 Occurrence/month	1,0000/-per Occurrence
		Above 10 Occurrence/month	Termination
		Samples tested by PCB/PCRI exceeding prescribed outlet parameters	25,000/- per Occurrence
2	Non-operating any working Equipment/Drive more than 4 hours except the Equipment/Drive under maintenance	more than 4 hours	1000/-per Drive hour after permissible limit of 4 hours
3	Over Power Consumed The contractor has to guarantee the maximum Guaranteed Power Consumption For entire plant (When DG is used , the electricity consumption shall be determined as follows Electricity Consumption (KW hr)+1.10 times the Electricity Equivalent of Diesel Consumed (KWH)	for power increased beyond current base level based on Effluent Discharge Schedule on monthly basis	4.50/KW hr. of extra power consumed or @prevailing Tariffs applied by state electricity Authority whichever is higher
4	Inappropriate de-sitting of Sewers and clearing of silt in premises	Per Occurrence	1000 per Occurrence
5	Delay in recording of energy Meter Reading, Power failure time or Diesel Consumption	Per Occurrence	100 per Occurrence
6	Duty Staff not wearing uniform or it being dirty.	Per Occurrence	100 per Occurrence
7	Minimum Maintenance time will be 15 Days for any maintenance activity which is not responsible for poor quality of treated sewage.	Every day after splayed time of 15 days	15000/- Per Day

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8	Any Maintenance works which are related to quality of treated sewage have to do within 24 hour with prior information / permission of Engineer in Charge (Verbal, Telephonic or any fasted mode	more than 24 hour	15000/- Per Hour
9	Damaged of Coarse Screen Bar/Conveyor Belt	01 Month	2000/- Per Day
10	Damaged of M.P.S. Pumps	15 Days	2000/- Per Day
11	Damaged of Fine Screen Bar / Conveyor Bar	01 Month	2000/- Per Day
12	Damaged of Ras Pumps/Sas Pumps	15 Days	1000/- Per Day
13	Damaged of Chlorine Booster Pump	7 days	1000/- Per Day
14	S.B.C. Poly Dosing Pumps	7Days	1000/- Per Day
15	Damaged of Air Blowers for digester	15 Days	1000/- Per Day
16	Damaged of Centrifuse pumps /Thickner feed Pumps	01 Months	1000/- Per Day
17	Damaged of Air Blower for C-Tech	01 Months	5000/- Per Day
18	Lighting System in Plant	2 days	5000/- Per Day
19	Damaged of Lab Equipments	7 Days	5000/- Per Day
20	Damaged of Scalan System	1 Week	5000/- Per Day
21	Damaged of Chloronator	1 week	2000/- Per Day

Intellectual Property & confidential Information-

The parties agree that all details plans manuals documentation specifications schedules programs reports calculations and other work relating to the facilities and /or Systems and the provision of operations pursuant to this Contract (hereafter referred to as proprietary Material) which have been or are hereafter written originated or made by any of them or any of their respective employees sub-contractors or agents and by the persons related to the contractor in connection with this contract shall be owned by and be the property of the Employer the determination of information as proprietary Materials shall be made at the sole discretion of the Employer. The contractor shall have an irrevocable royalty-free non-exclusive license to use the proprietary material during the term of this contract for all purposes connected with fulfilling its obligations hereunder however this license under this contract such license shall not continue after the suspension or termination of this contract or the discharge by the contract of its duties hereunder.

Confidentiality-

The contractor shall cause the persons related to the operator not to without the prior written consent of the Employer at any time divulge or disclose to any person or use for any purpose unconnected with the operations proprietary material under this contraction this shall not apply to information.

Already in the public domain otherwise than by breach of this contract.

Already to the possession of the receiving party before it was received from the office party in connection with this contract and which was not obtained under any obligation of confidentiality.

The contract shall whenever required take necessary steps to ensure that all persons employed by it under this contract comply with the Indian official secrets Act 1923 (XIX of 1923) and agree that it applies to them and shall continue to apply even after completion of this contract.

No photographs of the Facilities or system or any part there of or equipment employed thereon shall be taken or permitted by the contractor to be taken by any of its employees or any employees of its sub-contractor without the prior approval of the Engineer in writing and no

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such photographs shall be published or otherwise circulated without the approval of the Engineer in writing.

The Employer shall use its best efforts to ensure that the confidential proprietary information relating to the Contractor is not made public However the Employer shall not be liable in any manner whatsoever in case such information becomes public.

Assignment- The contractor shall not subcontract the whole of the operations or a substantial part thereof Except where otherwise provided by the contract the contractor shall not subcontract any part of the operations without the prior consent of the Engineer any such consent shall not relieve the contractor from any liability or obligations under the contract and it shall be responsible forth acts defaults and neglects of any subcontractor its agents servants or workmen as fully as if they were the acts defaults or neglects of the contractor its agents servants or workmen.

contractor shall not be required to obtain such consent for

The provision of labour or

The purchase of materials specified in the contract.

ıe event of a subcontractor having undertaken towards the contractor in respect of the work executed or the goods materials plant or operation supplied by such subcontractor any continuing obligation extending for a period exceeding that the of the contract period under the contract the contractor shall at any time after the expiration of such period assign to the Employer at the Employers request and cost the benefit of such obligation for the unexpired duration.

Default of Contractor

Event of Default

At any time after the Commencement Date, the Engineer may investigate each case where the Contractor has failed to properly perform the operation in accordance with this Contract. The Engineer shall issue a notice to the Contractor, instructing him to rectify the failure within a reasonable time.

An event of default on the part of its Contractor nein unable to fulfill its services obligations under the Contract shall be deemed as a serious default and is said to have occurred doubts any of the following causes.

The Engineer certifies to the Employer with a copy to the Contractor that in its opinion the Contractor.

Has repudiated the Contractor.

Without reasonable excuse has failed to commence operations in accordance with the Contract and pursuant to the Commencement date or failed to complete the operations within the time stipulated for completion

Gross misconduct of the Contractor

Despite previous warning from the Engineer in writing is otherwise persistently or flagrantly neglecting to comply with any of its obligations under the contract.

Contractor persistently fails to follow good operating practice in execution of the contract.

If the contractor changes the use to which any part or whole of the site is put or initiates a variation without the required approval of the Engineer.

The Contractor stops providing the operation for one day and the stoppage has not been authorized by the Engineer.

The Engineer gives notice that failure to correct a particular defect is a fundamental breach of Contract and the Contractor fails to correct it within a reasonable period of time determined by the Engineer.

If the Contractor is in breach of any law or statute government the operation

The contractor does not maintain a security which is required and

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The contractor in the judgment of the Employer has engaged in corrupt practices fraudulent practices in competing for or in carrying out the operations under the contract.
If the contract fails to obtain or keep in force the insurance requirements under this contract.
The contractor (in case of a consortium) has modified the composition of the consortium and/or the responsibility of each member of the consortium without prior approval of the Employer.
The contractor is enabling to maintain the composition and structure of its organization due to any of the following causes.
The contractor enters into voluntary or involuntary bankruptcy or liquidation.
The contractor becomes insolvent.
A receive administrator trustee or liquidator is appointee over any substantial part of its assets
Any at is done or event occurs with respect to the Contractor or its assets which under any applicable law has substantially similar effect to any of the foregoing acts or events.

Consequences of Default

t is default by the Contractor is said to have occurred pursuant to the Employer may after giving three days' notice to the Contractor enter upon the Site the facilities and / or system and terminate the contract without thereby releasing the contractor from any of its obligations under the contract or affecting the rights the rights and authorities conferred on the Employer contract. The Employer may use so much of the Contractors equipment, temporary works and materials as it may thing proper.

if the contract is terminated because of an contractor event of default the Employer shale be entitled to invoke the Security Deposit and carry out the operations through a successor Contractor or departmentally and at the risk and cost of the Contractor if the total amount due to the employer exceeds any payment due to the contractor the difference shall be a debt payable to the Employer.

f the Contract is terminated because of an contractors event of default, all materials on the site, plant, equipment and temporary works shall be deemed to be the property of the Employer.

Jnless prohibited by law the Contractor shall if so instructed by the Engineer within 3 days of such entry and terminated referred to assigns to the Employer the benefit of any Contract for the supply of any goods or materials of reparations which the Contractor may have entered into for the purposes of the Contract.

Default of Employer

Events of Default

An event of default on the part of the Employer, affecting the performance of the Contractor s operations shall be deemed to have occurred due to any of the following causes.
The Employer does not give access to part of the Site by the commencement date.
The Employer denotes make a payment certified by the Engineer within 90 days from the day of receipt of the Engineer s Certificate.
The Engineer instructs the Contractor to stop providing the operations and the instruction is not withdrawn within 3 days and
The Employer is in breach of any law or statute governing this Contract.

Consequences of Default

Pursuant to the Contractor may terminate its employment under the Contract by giving notice to the Engineer with a copy to the CGM. Such termination shall take effect 14 days after giving the said notice.
If the Employer, before the expiry of the above notice period, or immediately thereafter removes the cause of its default, the Contractors entitlement shall lapse in respect of such defaults, and the Contractor shall continue with /resume normal working as soon as is reasonably possible.

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